

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 25-07

Served: November 19, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING UNOPPOSED MOTION TO AMEND COMPLAINT

On May 2, 2025, Complainant PKDC, LLC filed its Verified Complaint alleging that Respondent COCO Shipping Lines Co., Ltd. violated 46 U.S.C. § 41102(c) and 46 C.F.R. § 545.5. Complainant alleges these violations arose from the assessment of unjust and unreasonable demurrage and detention charges due to circumstances outside the control of Complainant, and other acts or omissions of Respondent. On May 28, 2025, Respondent's motion to extend time to file a responsive pleading was granted, which extended the deadline to file a responsive pleading to June 12, 2024. (Dkt.8.) On June 11, 2025, the deadline was further extended to June 27, 2025. (Dkt. 10.) On June 27, 2025, Respondent filed its Verified Answer. (Dkt. 12.) On September 12, 2025, Complainant filed its Unopposed Motion to Amend Complaint, which was not acted on prior to the government shutdown occurring from October 1, 2025, to November 12, 2025, due to a lapse in appropriations. (Dkt. 18.) A signed copy of the Amended Complaint accompanied by Exhibit A is attached as Exhibit A to the motion.

The motion states that leave to amend is requested to remove certain invoices listed in the original complaint and that the amended complaint includes no other amendments. (Dkt. at 1.) The motion also states that Respondent's counsel consents to entry of an order granting the relief requested. (Dkt. 18 at 2.)

The Commission's Rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. However, Commission Rule 12 provides that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), "a party may amend its pleading once as a matter of course" within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with the opposing party's written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

The motion establishes good cause for granting the requested relief on the ground that the proposed amended complaint narrows the issues in dispute requiring resolution by the presiding officer, and thereby promotes judicial efficiency. Accordingly, it is hereby **ORDERED** that the motion for leave to amend the complaint is **GRANTED**. Complainant must file the Amended Complaint and Exhibit A by **November 25, 2025**. The Secretary is requested to serve the Amended Complaint when it is filed. Respondent must respond to the Amended Complaint **within twenty-five days** of service of the Amended Complaint. In addition, the parties must file a joint status report with a proposed schedule as required by the initial order **within fifteen days** of filing the answer. The parties are instructed to review the Initial Order and to send courtesy copies of all filings to: judges@fmc.gov.

MARY A. HERVEY -S

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HERVEY -S
Date: 2025.11.19 08:43:00 -05'00'

Mary Apostolakos Hervey
Administrative Law Judge